

NOTICE

This is a notice to inform industry that this solicitation is being solicited using the VISN 1 Construction MATOC. Only eligible VISN 1 Construction MATOC vendors are allowed to provide an offer for this solicitation.

**VISN 1 Construction MATOC
631-26-010 Abate and Upgrade Building 1 Common Area
Solicitation # 36C24126Q0357**

Issue Date:	04/16/2026
Site Visit Date/Time/Location to meet:	04/22/2026 at 11:00 AM EST – Participants must meet COR, Kaitlyn Fanning, on the North side of Building 60 (Chapel) near the entrance at the VA CWM HCS, 421 N Main St., Leeds, MA 01053. Please do not park in the spaces designated for patient parking.
Request for Information (RFI) Due Date/Time:	04/29/2026 at 1:00 PM EST
Proposal Due Date/Time:	05/18/2026 at 1:00 PM EST
Proposal Evaluation Factor:	Price Only

Issuing Office: VAMC Leeds, 421 North Main St., Leeds, MA 01053

Project Number: 631-26-010

Project Title: Abate and Upgrade Building 1 Common Area

VA Medical Center (VAMC): VAMC Leeds, 421 North Main St., Leeds, MA 01053

Project Description: Preparing site for building operations, including demolition and removal of existing structures to abate and upgrade common areas in Building 1.

Contracting Point of Contact: Brian Kelly

Email: Brian.Kelly@va.gov

Notice: Award is subject to the availability of funds.

General Information

1. All references to “Bid” or “Bidder” shall be understood to mean “Offer” or “Offeror”.
2. Magnitude of Construction: Between \$2,000,000 and \$5,000,000
3. NAICS: 236220, reference <https://www.sba.gov/document/support-table-size-standards> for most up-to-date small business size standards.
4. Offer Acceptance Period: Offeror providing less than 120 calendar days for Government acceptance will not be considered and will be rejected.
5. Requests for Information: RFIs shall be submitted by the prime contractor, through the Vendor Portal to the Point of Contact listed and date/time listed above. No telephone RFIs will be accepted. Responses will be provided in a Question & Answer format to all MATOC holders on the Vendor Portal.

6. Specifications and Drawings: All Applicable specifications and drawings will be provided electronically along with the Request for Task Order Proposal. No hard copies will be made available to proposing contractors.
7. Small Business Certification: Task Orders are 100% set aside for verified Service-Disabled Veteran Owned Small Businesses (SDVOSB's). The Government will review the Small Business Administration Small Business Search database at <https://search.certifications.sba.gov/> and verify SDVOSB status.
8. Limitations on Subcontracting: All contractors shall complete the VAAR 852.219-75 VA Notice of Limitations on Subcontracting - Certificate of Compliance for Services and Construction with the submission of their proposal in accordance with 13 CFR 125.6.
9. Performance and Payment Bonds and Alternative Payment Protections for Construction Contracts: In accordance with FAR 52.228-15, contractors are reminded that any amount awarded over \$35,000 shall require one Alternative Payment Protection. Awards exceeding \$150,000 shall require both Payment and Performance Bonds. The penal amounts must equal 100 percent of the original contract price. Performance bonds shall be provided on a Standard Form 25 and payment bonds shall be provided on a Standard Form 25A, the most up-to-date forms can be found on <http://www.gsa.gov/portal/forms/type/TOP>.

Performance and Payment Bonds are required.

10. Bid Bonds/Bid Guarantee: Bid guarantees shall be required whenever a performance bond or a performance and payment bond is required. In accordance with FAR 52.228-1, the amount of the bid guarantee shall be twenty percent of the bid price or \$3,000,000, whichever is less. Bid bonds shall be provided on a Standard Form 24, the most up-to-date forms can be found on <http://www.gsa.gov/portal/forms/type/TOP>.

Bid Bonds are required.

11. Insurance: Contractors shall provide and maintain the minimum amounts of insurance required under the base MATOC contract found under paragraph 4.18 for the entire duration of the Task Order.
12. Liquidated Damages: N/A
13. Construction Wage Requirements (formerly Davis Bacon): Contractors shall comply with Construction Wage Rate Requirements. The current determination is General Decision MA20260003. The determination that is current at the time of the Task Order award is the determination that will apply. Current determinations are available at: <https://sam.gov/content/wage-determinations>.
14. FAR 52.211-10 Commencement, Prosecution, and Completion of Work. The Contractor shall be required to (a) commence work under this contract within ten (10) calendar day(s) after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than five hundred and forty (540) calendar days. The time stated for completion shall include final cleanup of the premises.

15. FAR 52.225-9 Buy American-Construction Materials

This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows: None
If applicable, it is the responsibility of the Contractor to complete the Foreign and Domestic Construction Materials price comparison table for each applicable clause and/or alternate.

16. Special Notes regarding FAR 52.229-3: Federal, State and Local Taxes:

Please be informed that all VISN 1 New England states are tax-exempt when it comes to construction materials.

17. FAR 52.236-4 Physical Data. Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of, or conclusion drawn from the data or information by the Contractor.

- (a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by: U.S. Department of Veterans Affairs, VA Medical Center (VAMC).
- (b) Weather Conditions: N/A
- (c) Transportation Facilities: N/A
- (d) Other Physical Data: N/A

18. FAR 52.245-2 Government Property Installation Operation Services: Government property provided under this clause: N/A

19. VAAR 852.211-72 Technical Industry Standards: The Contractor shall conform to the standards established by: drawings, specifications, and statement of work.

Offerors may obtain the standards cited in this provision by submitting a request, including the solicitation number, title and number of the publication to: N/A

20. Payments under Fixed-Price Construction Contracts. This Task Order will incorporate: VAAR 852.232-70 Payments under fixed-price construction contracts WITHOUT NAS-CPM

21. VAAR 852.236-90 Restriction on submission and use of equal products apply to this Task Order (see attached Single Source Justification).

22. VAAR 852.243-70 Construction contract changes-supplement. The FAR clauses 52.236-2, Differing Site Conditions; 52.243-4, Changes; and 52.243-5, Changes and Changed Conditions, are *further* supplemented as follows: (3) Proposals shall be submitted to the Contracting Officer or ACO and the resident engineer as expeditiously as possible, but not later than fourteen (14) calendar days, after receipt of a written change order by the Contracting Officer. The Contracting Officer will consider issuing a settlement by determination to the contract if the Contractor's proposal required by paragraph (3) is not received within thirty (30) calendar days, or if agreement has not been reached.

23. VAAR 852.204-70 Personal Identity Verification of Contractor Personnel. (MARCH 2026)

a. The Contractor shall comply with current Department of Veterans Affairs policy for personal identity verification of all employees performing under this contract when physical access to VA facilities, and/or logical access to VA information and VA information systems is required.

b. The Contractor shall insert this clause in all subcontracts when the subcontractor's employees will require physical access to VA facilities, and/or logical access to VA information and VA information systems.

24. VAAR 852.204-72 Personnel Vetting and Credentialing. (MARCH 2026)

(a) Definitions. As used in this clause – VA Information system is the same as information system and means, pursuant to 38 U.S.C. 5727, a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

VA sensitive information means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following: individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney-client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs.

(b) General. Contractor personnel assigned to work for or on behalf of VA must undergo a background investigation commensurate with the risk and sensitivity level designation associated with the work to be performed at the level indicated in the contract. The Contractor and subcontractors shall comply with VA Directive/Handbook 0710, Personnel Security and Suitability Program, which can be accessed at: <https://vaww.va.gov/vapubs/index.cfm>

(c) Risk and Sensitivity Levels. The following table identifies the risk and sensitivity levels that apply to any personnel providing services under this contract. *VA Administrations, organizations and staff offices will use the OPM Position Designation Tool.

Positions/Tasks Designated as Non-Sensitive Positions - Tier 1/Low Risk
<i>Construction Contractor – Project Manager, Superintendent, Labors, and Subcontractors</i>

(d) Fitness. The results from a background investigation are used to determine if an individual's fitness is sufficient for that individual to perform work for or on behalf of VA in the position identified in this contract. Contractor fitness determinations are made in accordance with 5 CFR Part 731.202.

Fitness requirements for employment are separate and distinct from job qualifications. If a Contractor or subcontractor employee is found to be unsuitable or unfit to provide services under this contract, the Contractor shall immediately remove the employee from working on this contract and take those necessary steps that restrict the employee's logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information.

The Contractor shall advise the employee that they are not permitted to access any VA controlled building or real property in relation to this contract.

The removal of an unfit Contractor or subcontractor employee does not alleviate the Contractor from satisfying the requirements of this contract. The Government will not reimburse the Contractor for any costs associated with the recruitment/replacement of an employee or subcontractor employee who is found to be unfit.

(e) Identification Cards. The Government will provide a Personal Identification Verification (PIV) card or other identification card, as necessary, to fit Contractor personnel who require physical access to VA facilities and/or logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information. Contractor and subcontractor personnel shall prominently display their PIV/identification card on their persons while working at a VA facility and shall present their PIV/identification card for inspection upon request by a VA official. The Contractor must surrender the employee or subcontractor employee's PIV/identification card in accordance with the requirements set forth in Directive/Handbook 0735 when any of the following events occur:

1. When no longer needed for contract performance.
2. Upon completion of the Contractor/subcontractor employee's employment.
3. Upon contract completion or termination.

(f) Lost/stolen. Immediately upon detection, the Contractor shall report a lost or stolen PIV/identification card to the Government authorities as identified in Directive/Handbook 0735. Within 48 hours of reporting the lost/stolen PIV/identification card, the Contractor shall submit to the Program Manager an incident report that describes the relevant facts and circumstances regarding the loss/theft. If the loss/theft was reported by the Contractor to the local police, the Contractor shall further submit a copy of the final police report to the Program Manager within 48 hours of the report being made available by the local police department. The Government will not reimburse the Contractor for any costs that result from lost/stolen PIV/identification card(s).

(g) Regular Reporting. The Contractor shall submit a status report to PIV Sponsor within 5 working days after the end of each calendar quarter and as requested by the Government in order to initiate contract closeout procedures. The report must provide the status of each contractor/subcontractor employee who is required to have a PIV/identification card during the performance of the contract.

The report shall identify the Contractor and the contract number, and list the following status for each contractor/subcontractor employee who holds a PIV/identification card under this contract:

1. Contractor/subcontractor employee name.
2. Name of VA facility where Contractor/subcontractor employee works, if applicable.
3. Date background check submitted for Contractor/subcontractor employee.
4. Date PIV/identification card issued to Contractor/subcontractor employee.
5. Contractor/subcontractor employee's PIV/identification card number, as applicable.
6. Date Contractor/subcontractor employee no longer has need for PIV/identification card.
7. Date Contractor notified VA that PIV/identification card is no longer required.
8. Date Contractor returned PIV/identification card was returned to VA.

(h) Flow down of clause. The Contractor shall include the substance of this clause in subcontracts, third-party agreements, and BAA's, in which subcontractors, third-party servicers/employees, and business associates will perform functions where they will have physical access to a VA facility or logical access to VA data, information, VA sensitive information, or information technology or VA information system containing such data or information.

(End of clause)

25. Proposal Submission: Each offer in response to this request shall consist of the following:

- Signed offer to include Statement of Items
- Itemized breakdown of costs
- Signed Acknowledgement of Amendments
- Signed VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING

26. Proposal Submission. All proposals shall be submitted by the prime contractor, through the Vendor Portal at the date/time specified above. NO HARD COPY PROPOSALS OR FACSIMILES WILL BE ACCEPTED.

STATEMENT OF ITEMS

The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of the solicitation if this offer is accepted by the Government in writing within 120 calendar days after the date offers are due.

PROPOSAL ITEM (Base Proposal): Contractor shall provide all labor, materials, tools, equipment, and supervision, and perform all operations necessary for 631-26-010 Abate and Upgrade Building 1 Common Area in accordance with all attachments contained herein. Work shall commence upon receipt of the Notice to Proceed (NTP) from the government and shall be completed within the period of performance established in FAR 52.211-10 Commencement, Prosecution, and Completion of Work (i.e. Period of Performance).

PROPOSAL ITEM \$ _____

NOTE: Offerors must submit an itemized breakdown of costs.

Company Name:

Printed Name:

Authorized Signature:

ACKNOWLEDGMENT OF AMENDMENTS

The person submitting the proposal on behalf of the offeror shall sign the area below titled “Acknowledged by” and shall initial/date in the space(s) below to acknowledge any Amendment(s). This individual must be a legally authorized signatory of the company.

NOTE: Failure to acknowledge Amendments may render your offer unacceptable.

CERTIFICATION

I/we have received and considered the following Amendment(s) in the submitted proposal for this project.

Amendment Number	None	A00001	A00002	A00003	A00004	A00005
Date						
Initials						

Acknowledged by: _____

Printed Name: _____

VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING

VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING – CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) ☐ *Services*. In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☒ *General construction*. In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ *Special trade construction contractors*. In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract.

Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, [insert name of offeror] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [insert name of offeror].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

ATTACHMENTS

See attached document: S02_B1 Abate and Upgrade Common Areas B1 drawing rev1_631-26-010.

See attached document: S02_B1 Abate and Upgrade B1 Spec Book rev1_631-26-010.

See attached document: S02_Statement of Work_631-26-010.

See attached document: S02_WD MA20260003 1-2-26.

See attached document: S02_Itemized Cost Breakdown.

See attached document: S02_Single Source Justification MPT to SAT PC Finishes_BCK.